

EMAIL SERVICE PROVIDER (ESP) PLATFORM AGREEMENT

Contract ID: SNC-ESP-2024-0731

Provider: Sendcrest Email, Inc.

Effective Date: July 31, 2024

Customer: Contoso Marketing, Inc.

1. Services

1.1 Sendcrest provides a hosted email marketing and transactional-sending platform, including list management, automation journeys, deliverability tooling, and analytics, for sending on behalf of Customer and its clients.

1.2 The plan includes a committed volume of 6,000,000 emails per month across all sending domains.

2. Term, Renewal, and Notice

2.1 **Initial Term.** Two (2) years from the Effective Date, ending July 30, 2026.

2.2 **Automatic Renewal.** The Agreement renews automatically for one-year terms unless either party gives notice of non-renewal. Renewal date: July 31, 2026.

2.3 **Notice.** Written notice of non-renewal is required at least sixty (60) days before the renewal date — by June 1, 2026 for the current cycle.

3. Fees and Usage-Based Pricing

3.1 The base platform fee is USD \$30,000 per year, invoiced annually in advance, net 30.

3.2 **Usage Escalation.** Sending above the committed monthly volume is billed at \$0.50 per additional 1,000 emails. The committed-volume tier and base fee are re-evaluated at each renewal based on the trailing twelve months' average usage; sustained higher usage moves Customer to the next pricing tier at renewal.

4. Data Protection

4.1 Sendcrest processes subscriber personal data (email addresses, engagement events, and any personal data in campaign content) as a processor under the Data Processing Addendum (Exhibit A), which includes sub-processor terms and Standard Contractual Clauses where applicable.

4.2 Sendcrest shall: process only on Customer's instructions; honor unsubscribe and suppression obligations; maintain SOC 2 Type II security; and notify Customer of any personal-data breach within seventy-two (72) hours.

4.3 Customer remains the controller and is responsible for lawful consent to send. On termination, subscriber data is exported and deleted within thirty (30) days.

5. Acceptable Use

Customer shall comply with anti-spam laws (CAN-SPAM and equivalents). Sendcrest may suspend sending for verified abuse complaints.

6. Liability

Aggregate liability capped at the fees paid in the prior twelve months, except for breaches of Section 4.

7. Governing Law

Governed by the laws of the State of Colorado.

Sendcrest Email, Inc.

Contoso Marketing, Inc.

V. Romero, Account Manager

L. Okonkwo, VP Marketing